

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Homar Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a civil duty to report emergencies and homicides.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>3/12/2026</i>

HOUSE No.

By Representative Gómez of Easthampton, a petition (subject to Joint Rule 12) of Homar Gómez for legislation to establish a civil duty to report emergencies and homicides. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a civil duty to report emergencies and homicides.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 272 of the General Laws is hereby amended by inserting after
2 section 99 the following new section:

3 Section 100. Duty to Report Emergencies and Homicides.

4 (a) Any person who witnesses an emergency in which a reasonable person would believe
5 another individual is at imminent risk of death or serious bodily harm, or who witnesses an act
6 that they reasonably believe to be a homicide or an act that reasonably appears to constitute a
7 homicide, shall immediately notify emergency services, including by calling 911 or another
8 emergency number. Such person shall provide such information as is reasonably available
9 concerning the location, nature of the emergency or act, and any persons involved.

10 (b) A person who violates subsection (a) shall have committed a civil infraction,
11 punishable by a civil penalty not exceeding five hundred dollars. Such a violation shall not
12 constitute a criminal offense.

(c) A person who, in good faith, makes a report under this section shall not be subject to civil or criminal liability for making the report or for any statement made in connection with the report.

(d) No confidentiality privilege, including but not limited to attorney-client, doctor-patient, or clergy-penitent privilege, shall excuse a person from compliance with this section.

(e) Nothing in this section shall impose liability upon a person who reasonably believed another person had already notified emergency services or law enforcement, or upon a person who, due to physical danger or incapacity, was unable to make such a report.

(f) For the purposes of this section, the following terms shall have the following meanings:

(1) "Emergency" shall mean a situation in which a reasonable person would believe that an individual is at imminent risk of death or serious bodily harm, including but not limited to acts of violence, accidents, medical crises, or natural disasters.

(2) "Homicide" shall mean the unlawful killing of another human being, including acts that reasonably appear to constitute such a killing.

(3) "Reasonable belief" shall mean a belief that would be held by an ordinarily prudent person under the same or similar circumstances.

(4) "Serious bodily harm" shall mean a bodily injury that creates a substantial risk of death, causes permanent disfigurement, or results in long-term loss or impairment of the function of any bodily member or organ.